

BNS 2023

Bharatiya Nyaya Sanhita, 2023

Bharatiya Nyaya Sanhita (BNS), 2023

User Query :

I paid ₹1,20,000 as an advance for a second-hand car advertised online. The seller sent photographs of the vehicle, an identity document and what appeared to be registration papers. After receiving the money, the seller stopped responding. I later discovered that the vehicle belonged to another person and that some of the documents had been altered. What legal provisions may apply?

Job Id. :

qwen3-30b/Scenario 5/Bharatiya Nyaya Sanhita (BNS), 2023

Prepared by :

NyaySahayak

Date :

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AI-Powered Legal Intelligence Platform

APPLICABLE SECTIONS

Section 318 **(4) — Cheating and dishonestly inducing delivery of property**

The victim paid ₹1.2 lakh after deceptive representations about the vehicle.

Section 336 **(3) — Forgery for the purpose of cheating**

Potentially applies to altered documents made for the vehicle-sale fraud.

Section 340 **(2) — Using a forged document or electronic record as genuine**

Potentially applies if the seller knowingly used altered documents as genuine.

Section 319 **— Cheating by personation**

Applies if the seller pretended to be the owner or another person.

Section 337 **— Forgery of record of Court or of public register, etc.**

May apply if the altered registration paper is a forged government/public-register document of the kind covered by **section 337** .

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 The strongest mapping is cheating plus document forgery/use. Personation and the specialised public-record forgery provision depend on what the seller represented and what kind of registration document was altered.

✓ **STRENGTHS & RIGHTS**

1 Advance payment and altered registration material directly support the fraud/document theory.

✗ **RISKS & OBLIGATIONS**

1 Do not use invented BNS 'fraud' sections; use the enacted cheating/forgery provisions.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Keep original files/messages and obtain the genuine vehicle/registration records for comparison.
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